

CV-25-009819 ROSSBERG, JAMIE vs WATERFORD AUTO REPAIR - Plaintiff's Motion to Vacate Dismissal, Set Aside Order of Dismissal, and Restore Action to Court's Active Trial Calendar – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: On June 23, 2026, the Court dismissed this action without prejudice after Plaintiff failed to appear in Department 21 for the scheduled court trial. Plaintiff moved for relief on July 14, 2026, within approximately three weeks of the dismissal and well within the period prescribed by Code of Civil Procedure section 473(b). Plaintiff establishes that her failure to appear in Department 21 resulted from mistake or excusable neglect. The June 8, 2026 minute order displayed Department 22 in its heading, although the body of the order stated that trial would proceed in Department 21. Plaintiff declares that she timely came to the courthouse, reported to Department 22, checked in with the bailiff, was told she was "on the docket," and remained there awaiting the call of her case. The declaration of Louise Rossberg corroborates Plaintiff's account. Plaintiff's pretrial filings further support her assertion that she intended and was prepared to proceed with trial. The conflicting department references and Plaintiff's declared and corroborated interaction with courtroom personnel provide a sufficient basis for discretionary relief. Plaintiff acted promptly after dismissal, Defendant has not opposed the motion, and the record does not disclose case-specific prejudice that would result from restoring the action. The dismissal entered on June 23, 2026, is set aside. The action is restored to the Court's active docket. The Court SETS a case management conference for September 30, 2026, at 8:30 a.m. in Department 21. The Court will make some minor revisions to the proposed order and then will sign it. Plaintiff is ordered to have a third party serve a copy of the signed order on Defendant by mail at the Yosemite address within five days of issuance of the signed order.

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